

22STCV35303 22STCV35303

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-18

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The application is DENIED.

Counsel state that they will both be in trial on the date this trial is to begin. The court wonders how that could be. The case was continued for a second time on February 19, 2025, and set for the current date. The court has repeatedly warned the parties that there would be no continuances. No one objected to that date. If counsel elected to become engaged in another matter after the trial was set, that is likely their problem. Of course, if they are actually in trial, this court will have to accommodate that. But that means that the court will set the case for whenever it works for the court; the court will not be terribly sympathetic to other schedules. A 90 day continuance is unlikely and the court is not going to bump another trial due to counsel's calendaring issues. In the interim, the parties may want to discuss an extension of the 5 year rule if that is necessary.

The court will inquire, though, whether the new trial dates were set over counsel's express objection to the trial court that did the setting. If that is the case, the situation might be different. In other words, if the other court set the trial date and the conflict was brought to that court's attention with a request that a different date be chosen, and if that was this week, that is different. Counsel can only do so much, and if another court imposes a trial date, counsel cannot just ignore it. And if counsel was diligent, then counsel was diligent.

Finally, the court notes that it is possible that it will be engaged in trial on the current trial date.

If it is so engaged, or if more than one case is ready for trial on that date, the court is willing to then continue this to a different date. The parties might want to check in from time to time to see if that is happening. In the interim, but court reminds the parties of their FSC materials.